Landmark Judgments and Orders: A RERA Compendium

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PART-I

Important Judgments of the Supreme Court (RERA Related)

1. Upendra Chaudhury v. Bulandshahar Development Authority

Citation: AIR 2021 SC 2489

Facts

The petitioner, a homebuyer, approached the Supreme Court directly under **Article 32 of the Constitution of India** seeking relief against delay and irregularities in a housing project. The petitioner sought directions for completion of the project and protection of the rights of homebuyers.

Issue

Whether the Supreme Court should entertain a writ petition under **Article 32** filed by a single homebuyer when **statutory remedies under RERA, Consumer Protection Act, and IBC are available**.

Observations of the Court

The Supreme Court observed that:

1. The petition had been filed by a **single homebuyer without representing the entire class of homebuyers**.
2. The petition proceeded on the assumption that **all homebuyers had identical interests**, which may not be correct.
3. Entertaining such petitions would require the Court to **supervise day-to-day construction activities**, which is not the function of constitutional courts.
4. Parliament has already created **specialised statutory mechanisms** such as:
    - Real Estate (Regulation and Development) Act, 2016
    - Consumer Protection Act, 1986
    - Insolvency and Bankruptcy Code, 2016

Held

The Court declined to exercise jurisdiction under Article 32 and held that **homebuyers should pursue remedies under statutory forums created by law**.

Legal Principle

Where specialised statutory remedies exist, constitutional courts should **avoid direct intervention in real estate disputes**.

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2. IREO Grace Realtech Pvt. Ltd. v. Abhishek Khanna & Others

Citation: (2021) 3 SCC 241

Facts

Homebuyers filed a complaint before the **National Consumer Disputes Redressal Commission (NCDRC)** against the developer for delay in handing over possession and unfair clauses in the apartment buyer's agreement.

Issues

1. Whether **one-sided clauses in Builder Buyer Agreements** are enforceable.
2. Whether homebuyers can seek relief despite contractual limitations imposed by the developer.

Observations of the Court

The Supreme Court observed that:

- The clauses of the agreement were **completely one-sided**.
- Developers often draft agreements **entirely in their own favour**.
- Such clauses place the allottee in a **disadvantageous position at every stage of the transaction**.

The Court further noted that consumer forums must protect buyers against **unfair trade practices in real estate transactions**.

Held

The Supreme Court upheld the order of the NCDRC and declared that **unfair and one-sided contractual clauses in builder buyer agreements are unenforceable**.

Legal Principle

Builder-buyer agreements cannot contain **oppressive or unfair clauses favouring the promoter**.

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3. Imperia Structures Ltd. v. Anil Patni & Another

Citation: (2020) 10 SCC 783

Facts

The developer challenged the maintainability of consumer complaints filed by homebuyers on the ground that **RERA provided a separate remedy**.

Issue

Whether the **Consumer Protection Act remedy is barred after the enactment of RERA**.

Observations

The Supreme Court examined:

- **Section 79 of RERA** – bars jurisdiction of civil courts.
- **Section 88 of RERA** – provisions of RERA are **in addition to other laws**.
- **Section 89 of RERA** – RERA has overriding effect.

The Court held that:

- Consumer forums are **not civil courts**.
- RERA remedies are **not exclusive**.
- Homebuyers have **multiple forums available**.

Held

The Court ruled that **consumer complaints are maintainable even after RERA came into force**.

Legal Principle

Remedies under **RERA and Consumer Protection Act are concurrent**.

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4. Pioneer Urban Land & Infrastructure Ltd. v. Union of India

Citation: (2019) 8 SCC 416

Facts

The constitutional validity of the **Insolvency and Bankruptcy Code (Second Amendment) Act, 2018** was challenged. The amendment classified **homebuyers as financial creditors**.

Issues

1. Whether treating homebuyers as **financial creditors** is constitutionally valid.
2. Whether there is a conflict between **RERA and IBC**.

Observations

The Supreme Court held:

- Homebuyers invest money in projects similar to financial investments.
- They should be treated as **financial creditors under IBC**.
- RERA and IBC should be interpreted **harmoniously**.

Held

The amendment recognising homebuyers as **financial creditors was upheld**.

Legal Principle

Homebuyers can initiate **insolvency proceedings against defaulting developers**.

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5. Forum for People's Collective Efforts v. State of West Bengal

Citation: (2021) 8 SCC 599

Facts

The State of West Bengal enacted the **West Bengal Housing Industry Regulation Act (WBHIRA)** instead of implementing RERA.

Issue

Whether WBHIRA was **repugnant to the Central RERA Act**.

Observations

The Court held:

- Both laws dealt with the **same subject matter**.
- Many provisions of WBHIRA were **inconsistent with RERA**.

Held

The Supreme Court struck down WBHIRA as **unconstitutional due to repugnancy under Article 254 of the Constitution**.

Legal Principle

Where a **State law conflicts with a Central law**, the Central law prevails.

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6. Vishal Chelani & Ors. v. Debashis Nanda

Citation: Civil Appeal No. 3806 of 2023

Issue

Whether a homebuyer who has obtained a **decree under RERA** loses his status as a financial creditor under IBC.

Held

The Supreme Court held that:

- A homebuyer who becomes a **decree holder under RERA continues to remain a financial creditor**.
- Such homebuyers cannot be treated differently from other financial creditors.

Legal Principle

RERA decree holders **retain financial creditor status in insolvency proceedings**.

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7. Union Bank of India v. Rajasthan RERA

Citation: SLP (C) Nos. 1861-1871/2022

Issue

Whether **RERA can entertain complaints against banks acting as secured creditors**.

Observations

The Court held:

- RERA can hear complaints where **homebuyer rights are affected**.
- However, genuine transactions under **SARFAESI Act prior to RERA** cannot be disturbed unless fraudulent.

Legal Principle

RERA jurisdiction may extend to banks **where homebuyer rights are involved**.

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8. M/s Newtech Promoters & Developers Pvt. Ltd. v. State of U.P.

Citation: Civil Appeal Nos. 6745-6749 of 2021

This is one of the **most important judgments interpreting RERA**.

Major Issues

1. Whether **RERA has retrospective or retroactive effect**.
2. Whether the **Regulatory Authority can order refund with interest**.
3. Jurisdiction of **Adjudicating Officer vs Regulatory Authority**.
4. Validity of **delegation to a single member under Section 81**.
5. Constitutionality of **pre-deposit condition under Section 43(5)**.
6. Whether amounts can be recovered under **Section 40 of RERA**.

Findings of the Supreme Court

1. Retroactive operation
RERA applies to **ongoing projects**, protecting the interests of homebuyers.

2. Refund powers
The **Regulatory Authority can order refund and interest**.

3. Compensation
The **Adjudicating Officer only deals with compensation claims**.

4. Delegation of power
Delegation to **single member benches is valid under Section 81**.

5. Pre-deposit requirement
Promoters must deposit **30% or the entire amount determined** before filing appeal. This requirement is constitutional.

6. Recovery mechanism
Amounts determined by RERA are recoverable as **arrears of land revenue under Section 40**.

Legal Principle

This case clarified the **entire enforcement mechanism of RERA**.

PART-II

Important High Court Judgments (RERA Related)

1. Neelkamal Realtors Suburban Pvt. Ltd. v. Union of India

Bombay High Court (2017)

Key Findings

- RERA is **constitutionally valid**.
- Registration of **ongoing projects is mandatory**.
- RERA has **retroactive application**.

This judgment became the **foundation for later Supreme Court rulings**.

Bombay High Court

2. Mohammed Zain Khan v. Emnoy Properties India & Ors.

Citation: 2024 SCC OnLine Bom 1151

Issue

Whether a complaint under **Section 31 of the RERA Act, 2016** is maintainable when the project is **not registered under RERA or is incapable of being registered**.

Observations of the Court

The Bombay High Court observed that **RERA jurisdiction depends upon registration or registrability of the project** under the Act.

The Court explained that there may be situations where a project is **not required to be registered under RERA**, such as:

1. When the project is **not located within a planning area** as required under **Section 3 of the Act**.
2. When the project is constructed on **land below 500 square meters**.
3. When the project consists of **less than 8 apartments** (Section 3(2)(a)).
4. When the transaction relates to **sale of agricultural land without development**.

3. When the project is **incapable of registration due to legal or factual reasons**.

The Court further observed that in such situations **no violation of Section 3 occurs**, since registration itself is not required.

Held

A complaint under **Section 31 of RERA is not maintainable** for projects that are **not liable to be registered under the Act**.

Legal Principle

Where a project is **not required or incapable of being registered under RERA**, the remedy under RERA **is not available**, but the aggrieved person may approach:

- Consumer Forums
- Civil Courts

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4. **Balaji Construction Company v. Anjusha Ajit Kadam**

Citation: 2024 SCC OnLine Bom 601

Issue

Whether the **promoter must deposit interest as a pre-condition for filing an appeal before the RERA Appellate Tribunal**, even when the liability to pay such interest arises in the future.

Observations

The Bombay High Court interpreted **Section 43(5) of the RERA Act**, which provides that the promoter must deposit:

- **30% of the penalty**, or
- **the entire amount determined by the Authority**

before filing an appeal.

The promoter argued that **interest liability had not yet arisen (not in praesenti)** and therefore should not be deposited.

Held

The Court rejected the argument and held that:

- The promoter must **deposit the amount of interest determined by the RERA Authority** as a **pre-condition for filing an appeal**.
- The requirement applies **even if the liability arises in the future**.

Legal Principle

Pre-deposit requirements under **Section 43(5) are mandatory** for promoters seeking to challenge RERA orders.

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5. Neelkamal Realtors Suburban Pvt. Ltd. v. Union of India

Citation: 2017 SCC OnLine Bom 9302

Issue

Whether **Section 18 of RERA**, which requires promoters to pay interest for delay in possession, is constitutionally valid.

Observations

The Court examined **Section 18(1)(b)** of the RERA Act and held that:

- If the promoter fails to complete the project or deliver possession, the allottee has two options:
    1. **Withdraw from the project and seek refund with interest and compensation**, or
    2. **Continue with the project and receive interest for the delay period**.

The Court clarified that:

- Payment of interest is **not a penalty**.
- It is **compensatory in nature** because the promoter has utilized the buyer's money.

Held

The obligation to pay interest is **reasonable and valid**.

Legal Principle

Interest under **Section 18 is compensatory and not punitive**, and therefore constitutionally valid.

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6. Lavasa Corporation Ltd. v. Jitendra Jagdish Tulsiani & Others

Citation: Second Appeal (Stamp) Nos. 9717/2018 etc.

Observations of the Court

The Bombay High Court discussed the **object and purpose of RERA**.

The Court held that RERA was enacted to:

1. Ensure **transparency in real estate transactions**.
2. Provide **greater accountability of promoters**.
3. Reduce **fraud and delays in real estate projects**.
4. Balance the interests of **promoters and consumers**.
5. Establish a **fast-track dispute resolution mechanism**.

The Court also observed that:

- RERA applies to **ongoing projects** where **completion certificate has not been issued**.
- Promoters must register such projects within **three months of commencement of RERA**.

Further, the Court clarified that **each phase of a project is treated as a separate real estate project** under the Explanation to **Section 3**.

Legal Principle

RERA aims to **standardize the real estate sector and provide strong consumer protection mechanisms**.

Delhi High Court

7.Praveen Chhabra v. Real Estate Appellate Tribunal

Citation: W.P.(C) 14552/2021

Issue

Whether the **RERA Appellate Tribunal can take suo-motu cognizance of cases**.

Held

The Delhi High Court held that the **Appellate Tribunal cannot initiate proceedings suo-motu**.

Legal Principle

The RERA Appellate Tribunal can act **only when an appeal is filed by an aggrieved party**.

8.Priyanka Taksh Sood & Ors. v. Sunworld Residency Pvt. Ltd.

Citation: 2022 SCC OnLine Del 4717

Issue

Whether disputes between buyers and promoters are **arbitrable despite the availability of remedy under RERA**.

Observations

The Court observed that:

- RERA provides a **special statutory remedy**, but
- It **does not bar arbitration** where the agreement contains an arbitration clause.

Held

The disputes were **arbitrable** despite the existence of RERA remedies.

Legal Principle

Availability of remedy under **RERA does not automatically exclude arbitration jurisdiction**.

Punjab & Haryana High Court

9.JS Yadav v. Pradeep Kumar Jain & Others

Citation: COCP No. 14 of 2024 (O&M), decided on 09 May 2024

Issue

Whether contempt proceedings can be initiated for **violation of RERA orders**.

Observations

The Court observed that:

- Contempt jurisdiction applies to **courts**.
- RERA Authorities are **statutory regulatory bodies** and **not courts**.

The Court referred to the **constitutional doctrine of separation of powers** explained in **Kesavananda Bharati v. State of Kerala (1973)**.

Held

Since RERA is **not a court**, contempt proceedings cannot be initiated for violation of its orders.

Legal Principle

RERA orders cannot be enforced through **contempt jurisdiction under the Contempt of Courts Act**.

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10. Gauhati High Court

Dinesh Sharma v. Pinky Bhanshali & Ors.

Citation: RERA Appeal No. 2 of 2024

Issue

Whether a **building owner who sells flats occasionally due to hardship becomes a promoter under RERA**.

Observations

The Court examined **Section 2(zk) of the RERA Act**, which defines the term **promoter**.

The Court observed that the definition is **very wide and inclusive**, covering:

- A person who **constructs apartments for sale**
- A person who **converts an existing building into apartments**
- Any person who **develops land for sale**

The explanation to Section 2(zk) further clarifies that **multiple persons involved in construction and sale may be treated as joint promoters**.

Held

Even if a property owner sells apartments **due to personal hardship**, he may still be treated as a **promoter under RERA**.

Legal Principle

The definition of **promoter under RERA is broad and includes individuals who sell apartments constructed by them**.

Allahabad High Court

11.M/s T.G.B. Realty Pvt. Ltd. v. State of U.P. & Others

Citation: Writ-C No. 32330 of 2019

Issue

Whether RERA Authorities have the power to **review their own orders** when the Act does not explicitly provide such power.

Observations

The Court held that:

- Every **court or tribunal possesses inherent power of procedural review**.
- Such power exists even if the statute **does not expressly provide for it**.

Held

RERA authorities have **inherent procedural review powers**.

Legal Principle

Absence of an explicit provision in the statute **does not eliminate inherent procedural powers of tribunals**.

Mrs. Manju Rakesh v. State of U.P. & Others

Citation: (2025) ibclaw.in 102 HC
Court: Allahabad High Court

Issue:
Whether an allottee can challenge a **RERA refund order through a writ petition and seek allotment of the flat after commencement of CIRP (Corporate Insolvency Resolution Process) against the builder.**

Held / Summary:

1. The High Court held that a **writ petition under Article 226 is not maintainable** against a RERA refund order when the **statutory remedy of appeal under the RERA Act is available**.
2. Filing a writ petition at a **belated stage bypassing the appellate mechanism under Section 43 of RERA** cannot be permitted.
3. The Court further held that **interference with proceedings under the Insolvency and Bankruptcy Code (IBC) is not permissible**, as IBC is a **complete code with its own remedies and appellate framework**.
4. Any judicial interference that **interrupts the Corporate Insolvency Resolution Process (CIRP)** would breach the **discipline of insolvency law**.

Principle:
Once **CIRP has commenced against the builder**, disputes of allottees must be addressed within the **IBC framework before the NCLT**, and the High Court should not interfere through writ jurisdiction.

Apartment Owners Apex Association (Kerala) & Anr. v. State of Kerala & Ors.

Issue:
Whether the **form and manner of Agreement for Sale under Section 13 of the RERA Act, 2016** can be prescribed by State Rules.

Summary:

1. **Section 13(1) of the RERA Act, 2016** provides that a promoter **cannot accept more than 10% of the cost of the apartment/plot as advance or deposit without first entering into a written Agreement for Sale with the allottee.**
2. **Section 13(2)** further states that the **Agreement for Sale must be in the form prescribed by rules** made under the Act.
3. **Section 84 of the RERA Act** empowers the **appropriate State Government to frame rules** for implementing the provisions of the Act.
4. Under **Section 84(2)(h)**, the State Government can specifically prescribe **the form and particulars of the Agreement for Sale**.
5. Exercising this power, the **Government of Kerala framed the Kerala Real Estate (Regulation and Development) Rules, 2018**.
6. **Rule 10 of the Kerala RERA Rules, 2018** prescribes the **format and details of the Agreement for Sale** between the promoter and the allottee.

Principle:
The **State Government is empowered under Section 84 of the RERA Act to prescribe the form and particulars of the Agreement for Sale**, and promoters must follow the format prescribed in the State RERA Rules before accepting advance payment.

PART-III

Landmark Orders of the Authority

Additional Value for the shortfall in area

Case No. RERA/CC/1033/2021; landmark; The matter of additional value for the shortfall in area is in the nature of compensation which should be best addressed by the Adjudicating Officer.

Dispute between developer and landowner

1. **CC/107/2018 - Landmark -**Disputes between landowners and promoters does not fall within jurisdiction of Authority as defined in the RERA Act. Parties involved in such disputes are advised to seek resolution through the competent civil or criminal courts.

2. **RERA/CC/1251/2021, Project:Macha Swami Sai Palace:** Certainly! Under Bihar's RERA Regulations, when a landowner declines a profit share, they're treated similarly to allottees. This raises the question of whether the Authority can order interest payments for these landowner-allottees. However, as no payment was made by the landowner, the Authority can't issue interest directions due to the lack of a principal amount. Any claims for compensation, like house rent due to delays, fall under the jurisdiction of the Adjudicating Officer.

Adjustment of Profit

Case Nos. RERA/CC/846/2021; landmark; An adjustment of profits of some other project towards the dues of the complainant in respect of the booked flat is an internal matter between him and the respondent company. This matter has to be adjudicated in a court of competent jurisdiction.

Forensic Audit

R

RERA/CC/288/2019 - Project: Chhatrapati Shivaji Greens - The contention of the complainant to examine the trail of money received in the project is accepted by the Authority and directed a forensic audit may be conducted to establish whether the amount has been diverted. Secretary RERA is requested to get the forensic audit done, the cost of which would be recovered from the promoter/project.

Section 3 Violation

Project: Shivdhyan

Case No. RERA/CC/1592/2020; Landmark; The respondent-promoter after the commencement of the Act without registering the project went ahead with the booking in 2018 which is gross violation of section 3 of the Act and for such blatant violation Suo Motu proceeding against the respondent company for such violation be initiated under Section 59 of the Real Estate (Regulation and Development) Act, 2016.

Project: ANURAG PLAZA

Case No. RERA/CC/487/2019; landmark; An amount of Rs 30,000/- taken by the allottee in the name of registration with RERA is highly unethical. The promoter is mandated to get an ongoing project registered with the Authority after the commencement of the Real Estate (Regulation and Development) Act, 2016. The Act does not envisage that the promoter would take contributions from allottees to pay the registration fees. Hence, the promoter is directed to clarify why money was taken from the allottee under this head as alleged by the complainant, and if they have indeed taken the amount, the same may be refunded with interest within a week.

Projects: Samridh City/Samridh City Phase-1

Case No. SM/447/2020; landmark; As defined under section 2(b) of the Act "Advertisement means any document described or issued as advertisement through any medium and includes any notice, circular or other documents or publicity in any form, informing persons about a real estate project, or offering for sale of a plot, building or apartment or inviting persons to purchase in any manner such plot, building or apartment or to make advances or deposits for such purposes." Thus, if any promoter fails to register the project as per the Act and advertise the same then promoter shall be liable to pay a penalty which may extend up to ten per cent of the estimated cost of the real estate project.

Project: Raut City

Case No. RERA/CC/1054/2021; landmark; It is for the promoter to establish that a case of violation of Section 3 of RERA Act, 2016 is not made out and that there was no necessity to register the real estate project with RERA.

Project: Ram MahavirVatika

Complaint Case Nos. CC/569/2021; landmark; The Project was ongoing at the time of enforcement of the Act on 01.05.2017 and as such, the concerned project should have been registered with the Authority as per 1st Proviso of Section 3(1) of the Act. The Hon'ble Supreme Court recently in M/s Newtech Promoters & Developers Pvt. Ltd. Vs State of U.P &Ors. [2022] (1) RCR (Civil) 357 has observed that the Act is not retrospective in nature, rather it is retroactive because it affects the existing rights of the persons mentioned in the Act like promoter, allottee etc. The intent of legislature was to include all ongoing projects which commenced prior to the enforcement of the Act. Hence, the present Complaint Case is maintainable against the Respondents.

RERA/CC/1060/2021 - The Real Estate (Regulation and Development Act) 2016 makes registration mandatory for such projects that are on- going and do not have completion certificate at the time of the commencement of the Act.

RERA/CC/944/2021 – Project – Shanti Apartment – It was observed that the explanation of section 3 states that the real estate project is to be developed in phases, every such phase shall be considered a stand-alone real estate project, and the promoter shall obtain registration under this Act for each phase separately.

RERA/CC/REG.661/2018 – Project – Lake View Apartment – it was held that the State Government amended the Registration Act by providing that in a project, if any single flat was registered prior to RERA coming in force, registration of other lats of the project would be permissible even without the project being registered with RERA.

RERA/CC/1185/2021 - The order of Punjab RERA is not binding on Bihar RERA. Section 3 of the Act mandates that all the on-going projects on the date of commencement of the Act have to be registered with the Authority.

The Hon'ble Supreme Court in a recent judgment in M/s Newtech Promoters and Developers Pvt. Ltd vs State of U.P. &Ors that provisions of the Act is retroactive in nature, and that the Statute primarily aims to protect the right of the allottees.

Section 5

Project: Sai Motilal Enclave

Case No. RERA/CC/323/2021; landmark; since the title of land of the project is in dispute, it would be appropriate to prevent registration of any other project on the same land. The land owner ought to cancel the development agreement with the

complainant first before executing any other fresh agreement, but this can be enforced by the Civil Court.

Application for Registration

Project – SARITA KUNJ HI-RISE

Case No. RERA/PRO/REG.394/2018; landmark; Mukhiya of Gram Panchayat does not have the power of approval of building plan in their respective panchayat areas, and after the area is notified within the planning area, the competent authority to approve maps/ plans is the PMAA.

Section - 7

CC/617/2021 - Project: Raj Complex - Under Section 7 (1) (b) of the Act provides that the Authority may on receipt of the complaint revoke the registration after having been satisfied that the promoter violates any of the terms and conditions of the approval given by the competent authority. The present case is not a complaint case under Section 31of the Act. This matter is therefore, transferred to the Registration Wing for issuing notice to the promoter under Section 7 (2) of the Act.

RERA/CC/884/2021 - the respondent company of doing illegal construction and suppressing facts for obtaining approval of map has been obtained may be referred to the concerned competent authority. U/s 7 of the Act may be issued to the respondent company to show cause as to why the registration granted not be revoked.

RERA/CC/707/2019 - Projects: Maurya Palace - The Registration Wing was directed to issue notice for revocation u/s 7 of the Act, 2016 to the respondent company to show cause as to why the registration granted may not be revoked. The Authority is not vested with a power to issue direction for the cancellation of agreement as the same falls within the jurisdiction of civil court. However, as per the Bihar RERA Regulations,2021, since the landowner is an allottee, he may file a fresh complaint under Sec 31 of the Act specifying the relief sought from the Authority for protecting the rights of land owner -allottees.

RERA/CC/1119/2020 - Project: Loyala Valley, Sasaram - The issue of registration cannot be a subject matter of the complaint as the same is considered in the

administrative side which the complaint case is a quasi-judicial proceedings.

RERA/PR0/REG.517/2018 - Project-C2 - the Authority observed that this was done to protect the interest of the allottees as the promoter had collected huge advances from the allottees amounting to hundreds of crores in the last ten years and was neither making the refunds nor was completing the construction of apartments of hundreds of their consumers/allottees who had filed cases before it. The Authority is of the view that the financial status of the company and its track record does not install confidence in the ability of the promoter to complete the construction of the project and that it would be unfair to prospective customers if such a project is registered by it.

CC/1386/2020 - Project J.B.Mall Shopping Complex - The Promoter is directed to submit the modified/ revised/ supplementary development agreement duly concurred by all landowners, extending the validity of the registered development agreement beyond 31st October 2021 as the promoter doesn't have a valid title to the land (34.5 kathas) as on date, as required under section 4 (2) 10 (l) (A) of the Real Estate (Regulation and Development) Act 2016 within thirty days of issue of the order, failing which, the Authority may initiate appropriate action under section 7 (1) of the Act.

Section 8

Project: IOB Nagar G to J (H Block)

Case No: RERA/CC/631/2021; landmark; Rule 6(1) of the Bihar Real Estate (Regulation and Development) Rules, 2017, provides that "The registration granted under Section 5 of the Act, may be extended by the Authority, on an application made by the promoter in Form E, in triplicate, until the application procedure is made web based, within three months prior to the expiry of the registration granted". Since the application for extension of registration was submitted after the project had lapsed , there was no obligation to pass any speaking order on this issue.

All the blocks of the project are being treated as separate projects keeping the interests of allottees in minds justified on the basis of powers given to the Authority to issue directions as given under Section 37 of the Real Estate (Regulation and Development Act, 2016) which provides that "Authority may, for the purpose of discharging its functions under the provisions of this Act or rules or regulations made thereunder, issue such directions from time to time, to the promoters or allottees or real estate agents, as the case may be, as it may consider necessary and such directions shall be binding on all concerned."

This power was exercised to protect the interest of the allottees of J Block who

had agreed to get the remaining work of the block to be carried out by the respondent. Subsequently, while disposing complaint cases, time has been allowed to the respondent with the consent of the complainants to complete the remaining works in G and I Block, IOB Nagar.

Even if it is presumed that the registration of the real estate project 'IOB Nagar (G to J)' has been extended by the above Order but the present promoter failed to complete the construction of the project by 15.07.2021. Hence the extended validity of registration of all the blocks has ended. The Bench, therefore, comes to the conclusion that the registration of real estate project IOB Nagar Block H has lapsed.

Since more than 2/3rd allottees of H block has filed an affidavit stating therein that they want to construct the remaining work of the project by another builder and press to pass an order under section 8 of the RERA Act, 2016, the Bench is of the view that the promoter's right to construct remaining of the project has ceased to exist as per the provision of section 8 of the RERA Act, 2016 due to the lapse of registration of the project.

There is no merit in granting the permission for completion of remaining work in H Block by the respondent, especially when allottees and their association are vehemently opposing it. The Authority notes that even various opportunities were given to respondent to complete the project. The Authority also finds that various FIRs have been lodged against the respondent in respect of other projects and allegations have been levelled regarding diversion of funds. They have not completed various projects neither they have given refund of the amount after cancellation of flat and even after the direction of the Authority. Under these circumstances, the Bench agrees with the submission of allottees not to get the remaining work done by the respondent and endorses the proposal of the association of allottees to get the remaining development work completed by a new promoter with the observation that this may be referred to State Government as provided under section 8 of the RERA Act, 2016.

Section 11 & 18 Compliance

Project: ANURAG PLAZA

Case No. RERA/CC/445/2019; landmark; The respondent company mandated to discharge the obligations casted upon it as per the agreement u/s 18 and update the status of the project along with photographs as mandated under Sec 11 of the RERA Act, 2016.

RERA/CC/336/2019, PROJECT: VISION POLARIS: The promoter's failure to deliver the flat on time triggered interest payment obligations as per Section 18(1) of RERA. Based on the Newtech judgment, interest is payable from the possession-handover date. The promoter is responsible for paying interest from June 2014 until possession handover at a specific rate above the PLR/MCLR of the State Bank of India.

RERA/CC/380/2019 Landmark -Dispute of title of the project land pending in civil court. The complainant aligns with Section 18 (2) of the Real Estate (Regulation and Development) Act, 2016. This section mandates the promoter to compensate allottees for any losses due to defective land titles. The promoter was directed to inform all allottees about a pending title suit. Additionally, the promoter committed to compensating each allottee in the event of an adverse decision by the civil court regarding defective land titles.

Promoter Duties under section 11(4) (a)

Project: Holi Ganga Enclave

Complaint Case No.: CC/750/2021; landmark; the promoter is under obligation to perform his duties as mentioned in the Section 11(4) (a) of the RERA Act, 2016. In regard to claim for the deviation of map one can approach the competent authority having jurisdiction over it.

Project: DPM SHIVDHARI ENCLAVE

Case No. RERA/CC/52/2021; landmark; Section 11 of the Real Estate (Regulation & Development) Act, 2016 casts certain duties and obligations upon the promoter and any violation of the same attracts penal action u/s 61 of the Act. Further, section 63 of the Act provides for penal action in case of contravention of the orders and directions of the Authority by the promoter.

RERA/CC/259/2021 – Project – Tiruvantpuram City - The Authority can be approached after a specific cause of action has arisen, particularly if the allotment was cancelled and the allottee was aggrieved as provided in Section 11(5) of the Act, 2016.This complaint has been filed apprehending cancellation of booking and therefore it was rather premature to approach the Authority to intervene.

RERA/CC/1643/2020 - Project: Vision Galaxy - As per section 11(e) of the Act formation of association is mandatory. As per Section 63 of the Real Estate (Regulation and Development) Act, 2016 the Authority imposes a penalty of Rs 200/- on the respondent company and its directors, for every day of default after 26.06.2022 for not forming the association of allottees as directed by it.

Cancellation of Allotment

section 11(5)

Project: Crystal Apex

Case No.: CC/1119/2021; landmark; Notices for payment were issued to the complainants and after that final notice before cancellation was also issued but, the complainants did not perform their obligation as per their agreement, hence, the promoter is entitled to cancel the allotment in accordance to the terms of Agreement under section 11(5) of the Act. The allegations of delay or deliberate latches or short comings on the part of the respondent have not been established and as such, the claim for handing over possession after execution of sale deed in respect of this flat is devoid of any merit.

Project: - RAMGOLIA CITY

Complaint Case No. RERA/CC/306/2022; landmark; the complainant had already made payment of Rs.7,10,000/-, which was more than 20% of stage –wise demand by the respondent vide demand letter dated 16.11.2020. Hence, it is held that the respondent was not justified in cancelling the booking of the flat vide letter dated 20.3.2021.

Project: - OM TOWER

Complaint Case No. RERA/CC/1501/2020; RERA/AO/482/2020; landmark; The complainant ignored the communications/correspondences of the respondent in regard to the due payment and failed in making payments as per the terms of the Agreement for Sale. Hence, the cancellation of the allotment by the respondent does not suffer from any illegality in view of the provisions under Section 11(5) of the RERA Act, 2016.

Section 13(3)

Case No. RERA/CC/464/2019 - Project: Rahmat Tower - The legality of such allotment or otherwise would have to be examined by a court of competent Civil Jurisdiction. The complainant may approach the Civil Court if he wants flat no.303 for which he had entered into agreement to sale as this Authority cannot take away the right of some other allottee to whom the respondent has sold the same flat. The terms and conditions of the model agreement for sale as prescribed by Rule 8 of Bihar RERA Rules, 2017 has overriding effect in any Agreement to Sale entered earlier in case the conditions spread out in the Agreement to Sale are not in accordance with the model agreement. Section 13 (3) of the RERA Act clearly lays down that the promoter cannot accept more than 10% of the cost of the apartment without entering into an Agreement to Sale.

Issue of Deviation (Section 14)

Project: Vidyanand Maheshwari Complex Block-A & B

Case No.CC/963/2021; landmark; The issue of the deviation of map and illegal construction must raise before the competent authority. The duty is casted upon promoter under section 11(4) (a) and 14 (3) to cure such defects if arise within 5 years from the date of handing over the possession.

M/s Sangita Housing Devt. Pvt. Ltd.

Complaint case no. RERA/CC/215/2022; landmark; The construction work of the Laxmi Apartment was completed much earlier to coming into effect of the RERA Act, 2016 and execution of the Registered Sale Deed either in favour of the first allottee (Dr. (Mrs.) Shanti Singh) or the wife of the complainant (Mrs. Shobha Singh) was also made earlier to coming into effect of the RERA Act, 2016 and the same have not been disputed at the end of the complainant. Further, Section 14(3) of the RERA Act, 2016 also comes in the way of the complainant because the said Section prohibits an allottee to make any claim against the promoter beyond the period of five years from the date of handing over of the possession and in this case, admittedly, the complainant has moved the Authority beyond the period of five years of execution of the Sale Deed in favour of his wife.

Consent needed for Major Modification

Project: -SANCHAR NAGAR

Case No. RERA/CC/562/2021; landmark; The terms and conditions laid down in the agreement executed between the parties has to be followed by parties to the agreement to the extent the agreement is in conformity with Section 14(2) of the Real Estate (Regulation & Development) Act, 2016 and Bihar RERA Rules, 2017. Hence, in this case, the terms of agreement stated that minor modifications could be made by the respondent company, the respondent company ought to have taken consent of the complainant while making major modifications, which the respondent company has failed to do so.

Project: Sarvoyani City

Case No. CC/1311/2020; landmark; promoter can make changes to the agreed map and design only after taking the consent of the allottees as laid down under Section 14(2) of the Real Estate (Regulation & Development) Act, 2016.

RERA/CC/05/2021 - Project: Harihar Enclave – Complaint case referred to the competent authority who may re-examine and reconsider the approval for the revised map, especially on the point whether any addition and modification in the plan has been taken with the previous consent of at least 2/3rd of the allottees. The promoter is directed not to give effect to any change in the original approved map which was agreed with the allottee at the time of agreement for sale and comply with the provision of Section 14 (1) of the Act. Under the powers conferred to it under Section 37 of the Act, the Bench prohibits the respondent company to create any third party interest in the shops by way of sale of shops which was not included in the original approved sanction map.

Section 17

Project: Tauheed Nagar City

Case No. CC/501/2019; landmark; section 17(2) of the RERA Act, 2016, puts responsibility upon the promoter to hand over the necessary documents plans, including common areas, to the association of the allottees or the competent authority within 30 days after obtaining the occupancy certificate. Further section 19 of the Act provides certain rights to the allottees for which allottees are entailed to claim from promoter.

Project: Agrani Woods

Case No. RERA/CC/111/2021; landmark; Under Section 17 of the Act, the duty casted upon the promoter to give a copy of the Occupancy Certificate to the allottee.

Interest claimed by promoter on delayed payment (Section 19)

Project: - Agrani Woods

Case Nos. RERA/CC/850/2021; land mark, the purpose of the Act is to protect the interest of homebuyers and promote the growth of the real estate sector and the obligations of both the promoter and allottees have been clearly spelt out in the Act as well as under section 19. The Promoter ought to have written to the allottee of the instalments due to be paid by the allottee before cancelling his allotment. The allottee ought to have made the entire payment as mentioned in the agreement to sale. Since, the model agreement to sale annexed with the Bihar RERA Rules 2017, provide for the promoter to charge interest from the allottee for delayed payment, it urges the respondent company to accept payment of the remaining dues from the complainant with interest, if, the particular plot has not been allotted to another buyer.

CC/1559/2020 - Project: Laxmi Prabha Apartment - The instalments of payment as mentioned in Schedule 4 of the registered agreement to sale are linked with construction. The respondent company has not filed any document indicating that the progress of the work was intimated to the complainant and demand was raised upon him. Under these circumstances the claim of the respondent company for interest on delayed payment as per Section 19(6) of the Real Estate (Regulation and Development) Act is not tenable.

Section 32 (j) of the RERA Act, 2016

Project: Tashi Sector- 1

Case No. CC/994/2021; landmark, a recommendation has been made under section 32(j) of the Act for constitution of a multi-disciplinary team consisting of various experts from forensic audit/ police/ economic offence/ finance to investigate the working of the respondent- promoter company.

Section 40(2)

Ex. Case NO. 197/2021 RERA/CC/694/2019 - Project: Agrani Shivdhyan - The executee (respondent) has not honoured their commitment to start the process of refund, therefore, the said property attached under Section 40(2) of the Real Estate (Regulation and Development) Act, 2016 read with Rule 26 of Bihar RERA Rules, 2017 and the amount due to the executant has to be paid from the proceeds of sale of attached property situated in village Dhawalpura, Patna.

Section 69

Project: VIP Madhuvan

Complaint Case Nos. CC/422/2019; landmark; Section 69 of the Act specifically provides that for the offences by the companies, the penal provisions apply upon every person, who, at the time when the offence was committed was in charge of, or was responsible to the company. Hence, all the directors' fall within the ambit of this section and are thus liable to make the refund.

Project: Parkriti Vihar

CC/718/2019: Land Mark; Dispute between the internal affairs of management of the company and distribution of assets and liabilities and of change in management of the company cannot be entertained by the Authority as this issue is not tenable under the Real Estate (Regulation and Development) Act, 2016. Section 69 of the Act specifically provides that for the offences by the companies, the penal provisions apply for every person who, at the time, the offence was committed was in charge of, or was responsible to the company for the conduct of, the business of the company.

RERA/CC/654/2019 - Project: Kamal Heritage - After the new Directors took over the company it is their responsibility to take care of all the liabilities of the company as well as its assets. Section 69 of the Act specifically provides that the obligation of fulfilling the commitments made at the time of booking does not cease even after the resignation of the Directors and Officers of the Company.

RERA/CC/757/2019- Project: AARON Central City – If a company commits an offence under the Act, individuals responsible for the company's affairs at the time of the offence are deemed guilty and liable for punishment.

Adjustment of Profit

Project: - H.B. Tower

Case Nos. RERA/CC/846/2021; landmark; An adjustment of profits of some other project towards the dues of the complainant in respect of the booked flat is an internal matter between him and the respondent company. This matter has to be adjudicated in a court of competent jurisdiction.

Compensation

Project: Grand Plaza

Case No. RERA/CC/1033/2021; landmark; The matter of additional value for the shortfall in area is in the nature of compensation which should be best addressed by the Adjudicating Officer.

Dispute between developer and landowner

CC/107/2018 - Landmark - Disputes between landowners and promoters does not fall within jurisdiction of Authority as defined in the RERA Act. Parties involved in such disputes are advised to seek resolution through the competent civil or criminal courts.

RERA/CC/1251/2021, Project:Macha Swami Sai Palace: Certainly! Under Bihar's RERA Regulations, when a landowner declines a profit share, they're treated similarly to allottees. This raises the question of whether the Authority can order interest payments for these landowner-allottees. However, as no payment was made by the landowner, the Authority can't issue interest directions due to the lack of a principal amount. Any claims for compensation, like house rent due to delays, fall under the jurisdiction of the Adjudicating Officer.

Forensic Audit

RERA/CC/288/2019 - Project: Chhatrapati Shivaji Greens - The contention of the complainant to examine the trail of money received in the project is accepted by the Authority and directed a forensic audit may be conducted to establish whether the amount has been diverted. Secretary RERA is requested to get the forensic audit done, the cost of which would be recovered from the promoter/project.

Fund Arrangement

Project: Sri Ganesh

Case No. RERA/CC/727/2019; landmark; it is the responsibility of the Directors of the respondent company to arrange the necessary resources to enable refund to the complainant and other aggrieved allottees.

Imposition of Penalty on promoter for violation of the Act.

CC/66 & 67/2018 Landmark A penalty of Rs. 5 lakh imposed by the Authority on the directors of the company for cheating to consumers and misappropriating the project fund. Penalty has to be paid to the Authority.

Maintainability

Project: Sri Janaki Bhawan

Case No. CC/266/2019; landmark; the Authority is not the right forum to enforce various issues mentioned in a compromise agreement, for which the complainant ought to approach a court of competent civil jurisdiction.

Project: Tiruvanantpuram City

Case No. CC/615/2021; CC/616/2021; CC/618/2021; CC/623/2021; CC/624/2021; CC/626/2021; landmark; Additional floors beyond the sanctioned plan may be referred to the PMAA. The complainants may approach the competent authority i.e. PMAA for this purpose. The relief sought to stop construction work has to be pressed before the competent authority i.e. PMAA.

Project: Agrani Woods

Complaint Case No. RERA/CC/566/2019; LANDMARK; Complaint is maintainable as the project is registered with Authority and the plot against which sale deed is executed is of the respondent's project and respondent has acted and executed exchange deed on the issue raised in complaint. Hence, considering that plot is of respondent's project and the project is registered with Authority, the complaint is maintainable before the Authority and falls within the ambit of RERA Act, 2016.

Project: Sunit Ambrosia

Complaint Case Nos. CC/1143/2021; landmark; As per section 2(d) of the Bihar Real Estate Regulatory Authority "allottee" in relation to a real estate project, means the person to whom a plot, apartment or building, as the case may be, has been allotted, sold (whether as freehold or leasehold) or otherwise transferred by the promoter, and includes the person who subsequently acquires the said allotment through sale, transfer or otherwise but does not include a person to whom such plot, apartment or building, as the case may be, is given on rent and hence the matter is maintainable. As per RERA Act, 2016 the booking amount before executing the agreement to sale cannot be more 10% of the consideration, which does not seem to have been followed in this case. The model agreement for sale mentions that the deduction in cancellation cannot exceed the booking amount. Thus the contention of the respondent to refund the principal amount in installments after deducting 15% is

not tenable. The promoter has erred in taking more than 10% without executing the agreement to sale , they cannot deduct any amount for cancellation. The allottee has not taken adequate steps for cancellation of booking with cogent reasons thereof. Hence, no interest on the principal amount is admissible as the entire deposit without any deduction is being refunded.

Project: Banke Bihari Kunj

Complaint Case Nos. CC/1232/2020; landmark; the possession of flats has already handed over to the complainant as per the development and share distribution agreement and the complainant has approached before the authority for the enforcement of the clause of the Supplementary Agreement dated 29- 07-2014. Upon that issue, the Bench is in view that Authority has no jurisdiction to entertain upon the enforcement of the Supplementary Agreement and advised to approach competent court who can have jurisdiction to adjudicate upon such issue.

Project: Singam Apartment

Complaint Case Nos. CC/884/2020; landmark; Agreement for Sale dated 04-10-1991 is unregistered. The complainant states that he is leaving peacefully in the concerned flat since 04-10-1991 along with other allottees of the project. The complainant couldn't produce any document which may show that concerned project was on going on 1-05-2017. After due notice, respondent could not appear so that exact states of affairs could not come on the record. The complainant did not raise this matter before any forum prior to establishment of Authority rather it shows that he was waiting for establishment of Authority after such a long gap. In such facts and circumstances, it appears that the complainant petition of complainant is not maintainable and fit case to be dismissed. Accordingly, complainant petition is dismissed.

Project: Ganpati Residency

Complaint Case Nos. CC/600/2019; landmark; No documents like Agreement for Sale executed between the complainant and respondent in lieu of booking of flat , money receipts issued by the respondent company or any documents showing money paid to respondent company in lieu of flat booked or any other documents has been brought on record by complainant which substantiate the averments of complainant that he booked flat with the respondent company and paid money in lieu of booking of flat. From the Development Agreement dated 20-07-2014 placed on record by the respondent company. It appears that total area upon which development was executed was 3266.4 Sq. ft. which is less than 500 square meters as prescribed under section 3(2) (a) of the RERA Act, 2016, hence, no requirement of Registration with Authority needed.

Project: IOB Nagar, Block-K

Case No.CC/1085/2021; landmark; It appears from the record of the case that against present complainant on the same issue already an order was passed by the Bench of Adjudicating Officer on 11-11-2019. Hence, considering that order is already passed, the same issue cannot be decided again and bar by the principle of res-judicata.

Project: Aarini Lotus

Case Nos. RERA/CC/1618/2020; landmark; The present case filed on behalf of the complainant is not maintainable under RERA Act as the Complainant is neither a Promoter nor an allottee or an agent and hence, cannot file a complaint as a third party by quoting Section 31 of the RERA Act. The complainant is nowhere linked to the project and thus, he cannot file a case against the respondent company before RERA against the said project.

Project: Shukdeo Enclave

Complaint Case Nos. CC/1135/2021; landmark; The aim of Real Estate (Regulation and Development) Act, 2016 hereinafter referred as RERA Act is to protect the rights and interests of the consumers and to promote uniformity and standardization of business practices and transactions in the Real Estate sector. It also attempts to balance the interest of buyers and promoters by imposing certain duties on both of them and seeks to establish symmetry of information between buyer and promoter. A complaint can, therefore, be filed by any home buyer against the builder, developer or agent if the buyer's rights are violated or any provisions of the Act are contravened.

Project: Tiruvantpuram City

Case No. RERA/CC/1351/2020; landmark; As per Bihar RERA Regulation land owner is treated as allottee if they do not take part in the project in this matter. The land owner admittedly entered into a development agreement and has been assured for 3 flats. In terms of the law as settled by the Hon'ble Supreme Court of India the Authority can entertain the cases for possession of flats. The refund sought in this matter is not for possession ,but for refund of equivalent price of the land. Claims falling in the nature of compensation under the RERA Act, 2016 has to be pressed before the Adjudicating Officer (AO). The RERA Act does not envisage the cases where refund of amount and value of land in a development agreement will be adjudicated by it. The complainant ought to raise such claims before the court of competent civil jurisdiction.

CC/06/2018 - The project predated the Act's enactment, it remained incomplete, thereby falling within the purview of the Act's first proviso.

CC/232/2019 - The project in question was finished before the initiation of the Real Estate (Regulation and Development) Act, and the company had already sought a completion certificate from the authorized body. Consequently, the complaint's relief cannot be accommodated within the Act's provisions due to the project's pre-Act completion status and the applied completion certificate process.

CC/454/2018 - The complainant fails to meet the criteria of an "allottee" as per Section 2 (d) of the Act because they haven't provided an allotment letter or an Agreement for Sale to support their claim. Consequently, the complainant's claim is deemed not sustainable or maintainable under the Act.

CC/1432/2020- Real Estate project must be registered if the land area exceeds 500 sq. meters or if the number of flats exceeds eight, or both criteria are met. Despite the project being constructed on land less than 500 sq. meters, it contains 15 flats, making it fall within the ambit of RERA due to the number of flats exceeding the specified limit.

CC 1336 & 1337/2020 - The building was completed in 2016 and the allottees received possession of flats five years ago. Any issue relating to drainage or other facilities must be addressed by the allottees association. Moreover, any unauthorized construction in the parking area should be reported to the municipality for inspection and appropriate action. As such, the case was deemed not maintainable under RERA.

RERA/CC/317/2022: The Authority noted that as per the Supreme Court ruling in M/s. NEWTECH PROMOTERS AND DEVELOPERS PVT. LTD. vs. STATE OF UP & ORS., the Real Estate Act is retroactive, prioritizing the protection of home buyers' rights. Lack of registration or non-compliance by promoters undermines the Act's objectives. Therefore, claims suggesting the Authority's lack of jurisdiction due to project non-registration are invalid. The Act's definition of a real estate project in Section 2(zn) doesn't differentiate between registered and unregistered projects, allowing grievances from both to be addressed under Section 31 maintainable for consideration.

CC/1884/2020 – Project: RKM Tower - The allegation of obtaining forged signature over share distribution agreement is concerned has to be raised before the appropriate Court. RERA can consider the claims of landowners as allottees on the basis of development agreements and share distribution agreements, but it cannot adjudicate

on the authenticity of the signatures in such agreements. The complainant may approach competent appropriate forum for redressal of this issue.

RERA/CC/464/2019 – Project -Rahmat Tower - The legality of such allotment or otherwise would have to be examined by a court of competent Civil Jurisdiction. The complainant may approach the Civil Court if he wants flat no.303 for which he had entered into agreement to sale as this Authority cannot take away the right of some other allottee to whom the respondent has sold the same flat. The terms and conditions of the model agreement for sale as prescribed by Rule 8 of Bihar RERA Rules, 2017 has overriding effect in any Agreement to Sale entered earlier in case the conditions spread out in the Agreement to Sale are not in accordance with the model agreement. Section 13 (3) of the RERA Act clearly lays down that the promoter cannot accept more than 10% of the cost of the apartment without entering into an Agreement to Sale.

RERA/CC/297/2019 AO/55/2019 - Project: Anurag Plaza - If there is any obstruction in the parking space, the promoter is obliged to remove that, obtain occupancy certificate and share the same with the allottees. The matter of encroachment in parking space if any, may be referred to the competent authority. In so far as the issue of giving adequate share to the complainant as landowner that is the matter of suit by the court of competent civil jurisdiction.

RERA/CC/542/2021 - Project: - Raj Complex - The question of validity of development agreement, the adjudication regarding its validity and enforceability is beyond the purview of the Authority and the competent court of jurisdiction is the civil court.

Refund & Interest

Project: - Sports City Case Nos. RERA/CC/1128/2021; landmark; promoter stand that they cannot pay interest is not legally tenable under the provisions of the RERA Act, 2016 and the Bihar RERA Rules, 2017.

Refund without deducting Service Charge

Project:- AMBIKA VATIKA

Case No. RERA/CC/907/2021; landmark; If the map does not get approved by the competent authority and there is no chance to get approved then in such a situation, it is the duty of the promoter to immediately refund the money and cannot deduct service charge.

Project: – MANNAT CITY

RERA/CC/1249/2021; landmark; the complainant is in no way at fault in stopping the payment of remaining amount against the project which was not in existence and, therefore, the complainant is entitled to get the entire amount paid by him refunded without deduction of earnest money along with interest.

Set Aside The Penalty Interest

CC/1295/2021 - Project: Sanchar Nagar Project - Set aside the interest/ penalty levied upon the allottees of this complaint i.e. complainant by the demand letters issued to the respective allottees of this complaint and directs to issue possession letter by demanding the remaining amount due as per the Agreement for Sale and after receipt of the remaining amount, provide physical possession to the complainant and accordingly, execute the registered sale deed.

Share Distribution of Landowner

PROJECT: - SYAMA GARDEN

Case No. CC/1607/2020; landmark; the dispute pertains to the share of flats belonging to the complainant and the respondent company and the share distribution agreement which has to be adjudicated upon by the competent Court. The allegation of forcible occupancy of flats by the complainant may be taken by the respondent company before a court of competent civil jurisdiction and /or pursue the criminal matter. The land owner, as an allottee under the Bihar RERA Regulations, 2021 and the promoter are both required to fulfil their obligations under the Real Estate (Regulation &Development) Act, 2016 so that project can be completed on time.

Classicon Builders Pvt. Ltd

Case No. RERA/CC/1734/2020; landmark; Dispute of a civil nature is beyond the power vested with the Authority under the Real Estate (Regulation and Development) Act, 2016. The grievances of the complainant with respect to protection of 1/9th share would have to be adjudicated by a court of competent civil jurisdiction.

Project:- "Sanchar Nagar"

Case No. RERA/ CC/729/2021; landmark; Promoter is liable to hand over the share of the landowner as per development agreement.

Project: Ram Ishwar Tower

Case No. CC/1736/2020; landmark; The object of the Real Estate (Regulation & Development) Act, 2016 is to promote the growth of real estate sector and protect the interest of the allottees. The Authority is not vested with the power to adjudicate upon the share distribution agreement and the legality of authorization of the two partners with respect to carrying out the affairs of the partnership firm as the same vests with the court of competent jurisdiction.

Others

CC/98/2018-Landmark - An extensive delay in completing the project entitles the allottee to withdraw from the project voluntarily.

CC/63/2018-Landmark - The Authority noted that as per Section 2 (zk) of the Act, the term "promoter" seems to encompass both the promoter and the landowner.

CC/795/2020-Landmark - The Authority noted that the RERA registration for the project remains valid until its expiry date. To safeguard the interests of consumers/allottees, it's essential to adhere to Section 7 (3) of the RERA Act, 2016, which restricts the registration of properties situated on the land in question until the resolution of title and legitimacy concerns by the civil courts where such matters are pending.

CC/98/2018-Landmark - An extensive delay in completing the project entitles the allottee to withdraw from the project voluntarily.

CC/63/2018-Landmark - The Authority noted that as per Section 2 (zk) of the Act, the term "promoter" seems to encompass both the promoter and the landowner.

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Fund Arrangement

Project: Sri Ganesh

Case No. RERA/CC/727/2019; landmark; it is the responsibility of the Directors of the respondent company to arrange the necessary resources to enable refund to the complainant and other aggrieved allottees.

Imposition of Penalty on promoter for violation of the Act.

1. CC/66 & 67/2018 Landmark A penalty of Rs. 5 lakh imposed by the Authority on the directors of the company for cheating to consumers and misappropriating the project fund. Penalty has to be paid to the Authority.

Maintainability (A)

Project: Sri Janaki Bhawan

Case No. CC/266/2019; landmark; the Authority is not the right forum to enforce various issues mentioned in a compromise agreement, for which the complainant ought to approach a court of competent civil jurisdiction.

Project: Tiruvanantpuram City

Case No. CC/615/2021; CC/616/2021; CC/618/2021; CC/623/2021; CC/624/2021; CC/626/2021; landmark; Additional floors beyond the sanctioned plan may be referred to the PMAA. The complainants may approach the competent authority i.e. PMAA for this purpose. The relief sought to stop construction work has to be pressed before the competent authority i.e. PMAA.

Project: Agrani Woods

Complaint Case No. RERA/CC/566/2019; LANDMARK; Complaint is maintainable as the project is registered with Authority and the plot against which sale deed is executed is of the respondent's project and respondent has acted and executed exchange deed on the issue raised in complaint. Hence, considering that plot is of respondent's project and the project is registered with Authority, the complaint is maintainable before the Authority and falls within the ambit of RERA Act, 2016.

Project: Sunit Ambrosia

Complaint Case Nos. CC/1143/2021; landmark; As per section 2(d) of the Bihar Real Estate Regulatory Authority "allottee" in relation to a real estate project, means the person to whom a plot, apartment or building, as the case may be, has been allotted, sold (whether as freehold or leasehold) or otherwise transferred by the promoter, and includes the person who subsequently acquires the said allotment through sale, transfer or otherwise but does not include a person to whom such plot, apartment or building, as the case may be, is given on rent and hence the matter is maintainable. As per RERA Act, 2016 the booking amount before executing the agreement to sale cannot be more 10% of the consideration, which does not seem to have been followed in this case. The model agreement for sale mentions that the deduction in cancellation cannot exceed the booking amount. Thus the contention of the respondent to refund the principal amount in installments after deducting 15% is not tenable. The promoter has erred in taking more than 10% without executing the agreement to sale , they cannot deduct any amount for cancellation. The allottee has not taken adequate steps for cancellation of booking with cogent reasons thereof. Hence, no interest on the principal amount is admissible as the entire deposit without any deduction is being refunded.

Project: Banke Bihari Kunj

Complaint Case Nos. CC/1232/2020; landmark; the possession of flats has already handed over to the complainant as per the development and share distribution agreement and the complainant has approached before the authority for the enforcement of the clause of the Supplementary Agreement dated 29- 07-2014. Upon that issue, the Bench is in view that Authority has no jurisdiction to entertain upon the enforcement of the Supplementary Agreement and advised to approach competent court who can have jurisdiction to adjudicate upon such issue.

Project: Singam Apartment

Complaint Case Nos. CC/884/2020; landmark; Agreement for Sale dated 04-10-1991 is unregistered. The complainant states that he is leaving peacefully in the concerned flat since 04-10-1991 along with other allottees of the project. The complainant couldn't produce any document which may show that concerned project was on going on 1-05-2017. After due notice, respondent could not appear so that exact states of affairs could not come on the record. The complainant did not raise this matter before any forum prior to establishment of Authority rather it shows that he was waiting for establishment of Authority after such a long gap. In such facts and circumstances, it appears that the complainant petition of complainant is not maintainable and fit case to be dismissed. Accordingly, complainant petition is dismissed.

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Complaint Case Nos. CC/600/2019; landmark; No documents like Agreement for Sale executed between the complainant and respondent in lieu of booking of flat , money receipts issued by the respondent company or any documents showing money paid to respondent company in lieu of flat booked or any other documents has been brought on record by complainant which substantiate the averments of complainant that he booked flat with the respondent company and paid money in lieu of booking of flat. From the Development Agreement dated 20-07-2014 placed on record by the respondent company. It appears that total area upon which development was executed was 3266.4 Sq. ft. which is less than 500 square meters as prescribed under section 3(2) (a) of the RERA Act, 2016, hence, no requirement of Registration with Authority needed.

Project: IOB Nagar, Block-K

Case No.CC/1085/2021; landmark; It appears from the record of the case that against present complainant on the same issue already an order was passed by the Bench of Adjudicating Officer on 11-11-2019. Hence, considering that order is already passed, the same issue cannot be decided again and bar by the principle of res-judicata.

Project: Aarini Lotus

Case Nos. RERA/CC/1618/2020; landmark; The present case filed on behalf of the complainant is not maintainable under RERA Act as the Complainant is neither a Promoter nor an allottee or an agent and hence, cannot file a complaint as a third party by quoting Section 31 of the RERA Act. The complainant is nowhere linked to the project and thus, he cannot file a case against the respondent company before RERA against the said project.

Project: Shukdeo Enclave

Complaint Case Nos. CC/1135/2021; landmark; The aim of Real Estate (Regulation and Development) Act, 2016 hereinafter referred as RERA Act is to protect the rights and interests of the consumers and to promote uniformity and standardization of business practices and transactions in the Real Estate sector. It also attempts to balance the interest of buyers and promoters by imposing certain duties on both of them and seeks to establish symmetry of information between buyer and promoter. A complaint can, therefore, be filed by any home buyer against the builder, developer or agent if the buyer's rights are violated or any provisions of the Act are contravened.

Project: Tiruvantpuram City

Case No. RERA/CC/1351/2020; landmark; As per Bihar RERA Regulation land owner is treated as allottee if they do not take part in the project in this matter. The land owner admittedly entered into a development agreement and has been assured for 3

flats. In terms of the law as settled by the Hon'ble Supreme Court of India the Authority can entertain the cases for possession of flats. The refund sought in this matter is not for possession ,but for refund of equivalent price of the land. Claims falling in the nature of compensation under the RERA Act, 2016 has to be pressed before the Adjudicating Officer (AO). The RERA Act does not envisage the cases where refund of amount and value of land in a development agreement will be adjudicated by it. The complainant ought to raise such claims before the court of competent civil jurisdiction.

CC/06/2018 - The project predated the Act's enactment, it remained incomplete, thereby falling within the purview of the Act's first proviso.

CC/232/2019 - The project in question was finished before the initiation of the Real Estate (Regulation and Development) Act, and the company had already sought a completion certificate from the authorized body. Consequently, the complaint's relief cannot be accommodated within the Act's provisions due to the project's pre-Act completion status and the applied completion certificate process.

CC/454/2018 - The complainant fails to meet the criteria of an "allottee" as per Section 2 (d) of the Act because they haven't provided an allotment letter or an Agreement for Sale to support their claim. Consequently, the complainant's claim is deemed not sustainable or maintainable under the Act.

CC/1432/2020- Real Estate project must be registered if the land area exceeds 500 sq. meters or if the number of flats exceeds eight, or both criteria are met. Despite the project being constructed on land less than 500 sq. meters, it contains 15 flats, making it fall within the ambit of RERA due to the number of flats exceeding the specified limit.

CC 1336 & 1337/2020 - The building was completed in 2016 and the allottees received possession of flats five years ago. Any issue relating to drainage or other facilities must be addressed by the allottees association. Moreover, any unauthorized construction in the parking area should be reported to the municipality for inspection and appropriate action. As such, the case was deemed not maintainable under RERA.

RERA/CC/317/2022: The Authority noted that as per the Supreme Court ruling in M/s. NEWTECH PROMOTERS AND DEVELOPERS PVT. LTD. vs. STATE OF UP & ORS., the Real Estate Act is retroactive, prioritizing the protection of home buyers' rights. Lack of registration or non-compliance by promoters undermines the Act's objectives. Therefore, claims suggesting the Authority's lack of jurisdiction due to project non-registration are invalid. The Act's definition of a real estate project in Section 2(zn) doesn't differentiate between registered and unregistered projects, allowing grievances from both to be addressed under Section 31 maintainable for consideration.

CC/1884/2020 – Project: RKM Tower - The allegation of obtaining forged signature over share distribution agreement is concerned has to be raised before the appropriate Court. RERA can consider the claims of landowners as allottees on the basis of development agreements and share distribution agreements, but it cannot adjudicate on the authenticity of the signatures in such agreements. The complainant may approach competent appropriate forum for redressal of this issue.

RERA/CC/464/2019 – Project -Rahmat Tower - The legality of such allotment or otherwise would have to be examined by a court of competent Civil Jurisdiction. The complainant may approach the Civil Court if he wants flat no.303 for which he had entered into agreement to sale as this Authority cannot take away the right of some other allottee to whom the respondent has sold the same flat. The terms and conditions of the model agreement for sale as prescribed by Rule 8 of Bihar RERA Rules, 2017 has overriding effect in any Agreement to Sale entered earlier in case the conditions spread out in the Agreement to Sale are not in accordance with the model agreement. Section 13 (3) of the RERA Act clearly lays down that the promoter cannot accept more than 10% of the cost of the apartment without entering into an Agreement to Sale.

RERA/CC/297/2019 AO/55/2019 - Project: Anurag Plaza - If there is any obstruction in the parking space, the promoter is obliged to remove that, obtain occupancy certificate and share the same with the allottees. The matter of encroachment in parking space if any, may be referred to the competent authority. In so far as the issue of giving adequate share to the complainant as landowner that is the matter of suit by the court of competent civil jurisdiction.

RERA/CC/542/2021 - Project: - Raj Complex - The question of validity of development agreement, the adjudication regarding its validity and enforceability is beyond the purview of the Authority and the competent court of jurisdiction is the civil court.

Refund & Interest

Project: - Sports City

Case Nos. RERA/CC/1128/2021; landmark; promoter stand that they cannot pay interest is not legally tenable under the provisions of the RERA Act, 2016 and the Bihar RERA Rules, 2017.

Section 3 Violation

Project: Shivdhyan

Case No. RERA/CC/1592/2020; Landmark; The respondent-promoter after the commencement of the Act without registering the project went ahead with the booking in 2018 which is gross violation of section 3 of the Act and for such blatant violation Suo Motu proceeding against the respondent company for such violation be initiated under Section 59 of the Real Estate (Regulation and Development) Act, 2016.

Project: ANURAG PLAZA

Case No. RERA/CC/487/2019; landmark; An amount of Rs 30,000/- taken by the allottee in the name of registration with RERA is highly unethical. The promoter is mandated to get an ongoing project registered with the Authority after the commencement of the Real Estate (Regulation and Development) Act, 2016. The Act does not envisage that the promoter would take contributions from allottees to pay the registration fees. Hence, the promoter is directed to clarify why money was taken from the allottee under this head as alleged by the complainant, and if they have indeed taken the amount, the same may be refunded with interest within a week.

Projects: Samridh City/Samridh City Phase-1

Case No. SM/447/2020; landmark; As defined under section 2(b) of the Act "Advertisement means any document described or issued as advertisement through any medium and includes any notice, circular or other documents or publicity in any form, informing persons about a real estate project, or offering for sale of a plot, building or apartment or inviting persons to purchase in any manner such plot, building or apartment or to make advances or deposits for such purposes." Thus, if any promoter fails to register the project as per the Act and advertise the same then promoter shall be liable to pay a penalty which may extend up to ten per cent of the estimated cost of the real estate project.

Project: Raut City

Case No. RERA/CC/1054/2021; landmark; It is for the promoter to establish that a case of violation of Section 3 of RERA Act, 2016 is not made out and that there was no necessity to register the real estate project with RERA.

Project: Ram MahavirVatika

Complaint Case Nos. CC/569/2021; landmark; The Project was ongoing at the time of enforcement of the Act on 01.05.2017 and as such, the concerned project should have been registered with the Authority as per 1st Proviso of Section 3(1) of the Act. The Hon'ble Supreme Court recently in M/s Newtech Promoters & Developers Pvt. Ltd. Vs State of U.P &Ors. [2022] (1) RCR (Civil) 357 has observed that the Act is not retrospective in nature, rather it is retroactive because it affects the existing rights of the persons mentioned in the Act like promoter, allottee etc. The intent of legislature was to include all ongoing projects which commenced prior to the enforcement of the Act. Hence, the present Complaint Case is maintainable against the Respondents.

RERA/CC/1060/2021 - The Real Estate (Regulation and Development Act) 2016 makes registration mandatory for such projects that are on- going and do not have completion certificate at the time of the commencement of the Act.

RERA/CC/944/2021 – Project – Shanti Apartment – It was observed that the explanation of section 3 states that the real estate project is to be developed in phases, every such phase shall be considered a stand-alone real estate project, and the promoter shall obtain registration under this Act for each phase separately.

RERA/CC/REG.661/2018 – Project – Lake View Apartment – it was held that the State Government amended the Registration Act by providing that in a project, if any single flat was registered prior to RERA coming in force, registration of other lats of the project would be permissible even without the project being registered with RERA.

RERA/CC/1185/2021 - The order of Punjab RERA is not binding on Bihar RERA. Section 3 of the Act mandates that all the on-going projects on the date of commencement of the Act have to be registered with the Authority. The Hon'ble Supreme Court in a recent judgment in M/s Newtech Promoters and Developers Pvt. Ltd vs State of U.P. &Ors that provisions of the Act is retroactive in nature, and that the Statute primarily aims to protect the right of the allottees.

Refund without deducting Service Charge

Project:- AMBIKA VATIKA

Case No. RERA/CC/907/2021; landmark; If the map does not get approved by the competent authority and there is no chance to get approved then in such a situation, it is the duty of the promoter to immediately refund the money and cannot deduct service charge.

Project: – MANNAT CITY

RERA/CC/1249/2021; landmark; the complainant is in no way at fault in stopping the payment of remaining amount against the project which was not in existence and, therefore, the complainant is entitled to get the entire amount paid by him refunded without deduction of earnest money along with interest.

Section 5

Project: Sai Motilal Enclave

Case No. RERA/CC/323/2021; landmark; since the title of land of the project is in dispute, it would be appropriate to prevent registration of any other project on the same land. The land owner ought to cancel the development agreement with the complainant first before executing any other fresh agreement, but this can be enforced by the Civil Court.

Application for Registration

Project – SARITA KUNJ HI-RISE

Case No. RERA/PRO/REG.394/2018; landmark; Mukhiya of Gram Panchayat does not have the power of approval of building plan in their respective panchayat areas, and after the area is notified within the planning area, the competent authority to approve maps/ plans is the PMAA.

Section - 7

1. CC/617/2021 - Project: Raj Complex - Under Section 7 (1) (b) of the Act provides that the Authority may on receipt of the complaint revoke the registration after having been satisfied that the promoter violates any of the terms and conditions of the approval given by the competent authority. The present case is not a complaint case under Section 31of the Act. This matter is therefore, transferred to the Registration Wing for issuing notice to the promoter under Section 7 (2) of the Act.
2. RERA/CC/884/2021 - the respondent company of doing illegal construction and suppressing facts for obtaining approval of map has been obtained may be referred to the concerned competent authority. U/s 7 of the Act may be issued

to the respondent company to show cause as to why the registration granted not be revoked.

3. RERA/CC/707/2019 - Projects: Maurya Palace - The Registration Wing was directed to issue notice for revocation u/s 7 of the Act, 2016 to the respondent company to show cause as to why the registration granted may not be revoked. The Authority is not vested with a power to issue direction for the cancellation of agreement as the same falls within the jurisdiction of civil court. However, as per the Bihar RERA Regulations,2021, since the landowner is an allottee, he may file a fresh complaint under Sec 31 of the Act specifying the relief sought from the Authority for protecting the rights of land owner -allottees.
4. RERA/CC/1119/2020 - Project: Loyala Valley, Sasaram - The issue of registration cannot be a subject matter of the complaint as the same is considered in the administrative side which the complaint case is a quasi-judicial proceedings.
5. RERA/PR0/REG.517/2018 - Project-C2 - the Authority observed that this was done to protect the interest of the allottees as the promoter had collected huge advances from the allottees amounting to hundreds of crores in the last ten years and was neither making the refunds nor was completing the construction of apartments of hundreds of their consumers/allottees who had filed cases before it. The Authority is of the view that the financial status of the company and its track record does not install confidence in the ability of the promoter to complete the construction of the project and that it would be unfair to prospective customers if such a project is registered by it.
6. CC/1386/2020 - Project J.B.Mall Shopping Complex - The Promoter is directed to submit the modified/ revised/ supplementary development agreement duly concurred by all landowners, extending the validity of the registered development agreement beyond 31st October 2021 as the promoter doesn't have a valid title to the land (34.5 kathas) as on date, as required under section 4 (2) 10 (l) (A) of the Real Estate (Regulation and Development) Act 2016 within thirty days of issue of the order, failing which, the Authority may initiate appropriate action under section 7 (1) of the Act.

Section 8

Project: IOB Nagar G to J (H Block)

Case No: RERA/CC/631/2021; landmark; Rule 6(1) of the Bihar Real Estate (Regulation and Development) Rules, 2017, provides that "The registration granted under Section 5 of the Act, may be extended by the Authority, on an application made by the promoter in Form E, in triplicate, until the application procedure is made web based, within three months prior to the expiry of the registration granted". Since the

application for extension of registration was submitted after the project had lapsed , there was no obligation to pass any speaking order on this issue.

All the blocks of the project are being treated as separate projects keeping the interests of allottees in minds justified on the basis of powers given to the Authority to issue directions as given under Section 37 of the Real Estate (Regulation and Development Act, 2016) which provides that "Authority may, for the purpose of discharging its functions under the provisions of this Act or rules or regulations made thereunder, issue such directions from time to time, to the promoters or allottees or real estate agents, as the case may be, as it may consider necessary and such directions shall be binding on all concerned."

This power was exercised to protect the interest of the allottees of J Block who had agreed to get the remaining work of the block to be carried out by the respondent. Subsequently, while disposing complaint cases, time has been allowed to the espondent with the consent of the complainants to complete the remaining works in G and I Block, IOB Nagar.

Even if it is presumed that the registration of the real estate project 'IOB Nagar (G to J)' has been extended by the above Order but the present promoter failed to complete the construction of the project by 15.07.2021. Hence the extended validity of registration of all the blocks has ended. The Bench, therefore, comes to the conclusion that the registration of real estate project IOB Nagar Block H has lapsed.

Since more than 2/3rd allottees of H block has filed an affidavit stating therein that they want to construct the remaining work of the project by another builder and press to pass an order under section 8 of the RERA Act, 2016, the Bench is of the view that the promoter's right to construct remaining of the project has ceased to exist as per the provision of section 8 of the RERA Act, 2016 due to the lapse of registration of the project.

There is no merit in granting the permission for completion of remaining work in H Block by the respondent, especially when allottees and their association are vehemently opposing it. The Authority notes that even various opportunities were given to respondent to complete the project. The Authority also finds that various FIRs have been lodged against the respondent in respect of other projects and allegations have been levelled regarding diversion of funds. They have not completed various projects neither they have given refund of the amount after cancellation of flat and even after the direction of the Authority. Under these circumstances, the Bench agrees with the submission of allottees not to get the remaining work done by the respondent and endorses the proposal of the association of allottees to get the remaining development work completed by a new promoter with the observation that this may be referred to State Government as provided under section 8 of the RERA Act, 2016.

Section 13(3)

Case No. RERA/CC/464/2019 - Project: Rahmat Tower - The legality of such allotment or otherwise would have to be examined by a court of competent Civil Jurisdiction. The complainant may approach the Civil Court if he wants flat no.303 for which he had entered into agreement to sale as this Authority cannot take away the right of some other allottee to whom the respondent has sold the same flat. The terms and conditions of the model agreement for sale as prescribed by Rule 8 of Bihar RERA Rules, 2017 has overriding effect in any Agreement to Sale entered earlier in case the conditions spread out in the Agreement to Sale are not in accordance with the model agreement. Section 13 (3) of the RERA Act clearly lays down that the promoter cannot accept more than 10% of the cost of the apartment without entering into an Agreement to Sale.

Issue of Deviation

Project: Vidyanand Maheshwari Complex Block-A & B

Case No.CC/963/2021; landmark; The issue of the deviation of map and illegal construction must raise before the competent authority. The duty is casted upon promoter under section 11(4) (a) and 14 (3) to cure such defects if arise within 5 years from the date of handing over the possession.

M/s Sangita Housing Devt. Pvt. Ltd.

Complaint case no. RERA/CC/215/2022; landmark; The construction work of the Laxmi Apartment was completed much earlier to coming into effect of the RERA Act, 2016 and execution of the Registered Sale Deed either in favour of the first allottee (Dr. (Mrs.) Shanti Singh) or the wife of the complainant (Mrs. Shobha Singh) was also made earlier to coming into effect of the RERA Act, 2016 and the same have not been disputed at the end of the complainant. Further, Section 14(3) of the RERA Act, 2016 also comes in the way of the complainant because the said Section prohibits an allottee to make any claim against the promoter beyond the period of five years from the date of handing over of the possession and in this case, admittedly, the complainant has moved the Authority beyond the period of five years of execution of the Sale Deed in favour of his wife.

Consent needed for Major Modification

Project: -SANCHAR NAGAR

Case No. RERA/CC/562/2021; landmark; The terms and conditions laid down in the agreement executed between the parties has to be followed by parties to the agreement to the extent the agreement is in conformity with Section 14(2) of the Real Estate (Regulation & Development) Act, 2016 and Bihar RERA Rules, 2017. Hence, in this case, the terms of agreement stated that minor modifications could be made by the respondent company, the respondent company ought to have taken consent of the complainant while making major modifications, which the respondent company has failed to do so.

Project: Sarvoyani City

Case No. CC/1311/2020; landmark; promoter can make changes to the agreed map and design only after taking the consent of the allottees as laid down under Section 14(2) of the Real Estate (Regulation & Development) Act, 2016.

RERA/CC/05/2021 - Project: Harihar Enclave – Complaint case referred to the competent authority who may re-examine and reconsider the approval for the revised map, especially on the point whether any addition and modification in the plan has been taken with the previous consent of at least 2/3rd of the allottees. The promoter is directed not to give effect to any change in the original approved map which was agreed with the allottee at the time of agreement for sale and comply with the provision of Section 14 (1) of the Act. Under the powers conferred to it under Section 37 of the Act, the Bench prohibits the respondent company to create any third party interest in the shops by way of sale of shops which was not included in the original approved sanction map.

Promoter Duties under section 11(4) (a)

Project: Holi Ganga Enclave

Complaint Case No.: CC/750/2021; landmark; the promoter is under obligation to perform his duties as mentioned in the Section 11(4) (a) of the RERA Act, 2016. In regard to claim for the deviation of map one can approach the competent authority having jurisdiction over it.

Project: DPM SHIVDHARI ENCLAVE

Case No. RERA/CC/52/2021; landmark; Section 11 of the Real Estate (Regulation & Development) Act, 2016 casts certain duties and obligations upon the promoter and

any violation of the same attracts penal action u/s 61 of the Act. Further, section 63 of the Act provides for penal action in case of contravention of the orders and directions of the Authority by the promoter.

RERA/CC/259/2021 – Project – Tiruvantpuram City - The Authority can be approached after a specific cause of action has arisen, particularly if the allotment was cancelled and the allottee was aggrieved as provided in Section 11(5) of the Act, 2016.This complaint has been filed apprehending cancellation of booking and therefore it was rather premature to approach the Authority to intervene.

RERA/CC/1643/2020 - Project: Vision Galaxy - As per section 11(e) of the Act formation of association is mandatory. As per Section 63 of the Real Estate (Regulation and Development) Act, 2016 the Authority imposes a penalty of Rs 200/- on the respondent company and its directors, for every day of default after 26.06.2022 for not forming the association of allottees as directed by it.

Cancellation of Allotment

section 11(5)

Project: Crystal Apex

Case No.: CC/1119/2021; landmark; Notices for payment were issued to the complainants and after that final notice before cancellation was also issued but, the complainants did not perform their obligation as per their agreement, hence, the promoter is entitled to cancel the allotment in accordance to the terms of Agreement under section 11(5) of the Act. The allegations of delay or deliberate latches or short comings on the part of the respondent have not been established and as such, the claim for handing over possession after execution of sale deed in respect of this flat is devoid of any merit.

Project: - RAMGOLIA CITY

Complaint Case No. RERA/CC/306/2022; landmark; the complainant had already made payment of Rs.7,10,000/-, which was more than 20% of stage –wise demand by the respondent vide demand letter dated 16.11.2020. Hence, it is held that the respondent was not justified in cancelling the booking of the flat vide letter dated 20.3.2021.

Project: - OM TOWER

Complaint Case No. RERA/CC/1501/2020; RERA/AO/482/2020; landmark; The complainant ignored the communications/correspondences of the respondent in regard to the due payment and failed in making payments as per the terms of the Agreement for Sale. Hence, the cancellation of the allotment by the respondent does not suffer from any illegality in view of the provisions under Section 11(5) of the RERA Act, 2016.

Section 11 & 18 Compliance

Project: ANURAG PLAZA

Case No. RERA/CC/445/2019; landmark; The respondent company mandated to discharge the obligations casted upon it as per the agreement u/s 18 and update the status of the project along with photographs as mandated under Sec 11 of the RERA Act, 2016.

RERA/CC/336/2019, PROJECT: VISION POLARIS: The promoter's failure to deliver the flat on time triggered interest payment obligations as per Section 18(1) of RERA. Based on the Newtech judgment, interest is payable from the possession-handover date. The promoter is responsible for paying interest from June 2014 until possession handover at a specific rate above the PLR/MCLR of the State Bank of India.

RERA/CC/380/2019 Landmark -Dispute of title of the project land pending in civil court. The complainant aligns with Section 18 (2) of the Real Estate (Regulation and Development) Act, 2016. This section mandates the promoter to compensate allottees for any losses due to defective land titles. The promoter was directed to inform all allottees about a pending title suit. Additionally, the promoter committed to compensating each allottee in the event of an adverse decision by the civil court regarding defective land titles.

Section 17

Project: Tauheed Nagar City

Case No. CC/501/2019; landmark; section 17(2) of the RERA Act, 2016, puts responsibility upon the promoter to hand over the necessary documents plans, including common areas, to the association of the allottees or the competent authority within 30 days after obtaining the occupancy certificate. Further section 19 of the Act provides certain rights to the allottees for which allottees are entailed to claim from promoter.

Project: Agrani Woods

Case No. RERA/CC/111/2021; landmark; Under Section 17 of the Act, the duty casted upon the promoter to give a copy of the Occupancy Certificate to the allottee.

Interest claimed by promoter on delayed payment

Project: - Agrani Woods

Case Nos. RERA/CC/850/2021; land mark, the purpose of the Act is to protect the interest of homebuyers and promote the growth of the real estate sector and the obligations of both the promoter and allottees have been clearly spelt out in the Act as well as under section 19. The Promoter ought to have written to the allottee of the instalments due to be paid by the allottee before cancelling his allotment. The allottee ought to have made the entire payment as mentioned in the agreement to sale. Since, the model agreement to sale annexed with the Bihar RERA Rules 2017, provide for the promoter to charge interest from the allottee for delayed payment, it urges the respondent company to accept payment of the remaining dues from the complainant with interest, if, the particular plot has not been allotted to another buyer.

CC/1559/2020 - Project: Laxmi Prabha Apartment - The instalments of payment as mentioned in Schedule 4 of the registered agreement to sale are linked with construction. The respondent company has not filed any document indicating that the progress of the work was intimated to the complainant and demand was raised upon him. Under these circumstances the claim of the respondent company for interest on delayed payment as per Section 19(6) of the Real Estate (Regulation and Development) Act is not tenable.

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CC/1559/2020 - Project: Laxmi Prabha Apartment - The instalments of payment as mentioned in Schedule 4 of the registered agreement to sale are linked with construction. The respondent company has not filed any document indicating that the progress of the work was intimated to the complainant and demand was raised upon him. Under these circumstances the claim of the respondent company for interest on delayed payment as per Section 19(6) of the Real Estate (Regulation and Development) Act is not tenable.

Section 32 (j) of the RERA Act, 2016

Project: Tashi Sector- 1

Case No. CC/994/2021; landmark, a recommendation has been made under section 32(j) of the Act for constitution of a multi-disciplinary team consisting of various experts from forensic audit/ police/ economic offence/ finance to investigate the working of the respondent- promoter company.

Section 40(2)

Ex. Case NO. 197/2021 RERA/CC/694/2019 - Project: Agrani Shivdhyan - The executee (respondent) has not honoured their commitment to start the process of refund, therefore, the said property attached under Section 40(2) of the Real Estate (Regulation and Development) Act, 2016 read with Rule 26 of Bihar RERA Rules, 2017

and the amount due to the executant has to be paid from the proceeds of sale of attached property situated in village Dhawalpura, Patna.

Section 69

Project: VIP Madhuvan

Complaint Case Nos. CC/422/2019; landmark; Section 69 of the Act specifically provides that for the offences by the companies, the penal provisions apply upon every person, who, at the time when the offence was committed was in charge of, or was responsible to the company. Hence, all the directors' fall within the ambit of this section and are thus liable to make the refund.

Project: Parkriti Vihar

CC/718/2019: Land Mark; Dispute between the internal affairs of management of the company and distribution of assets and liabilities and of change in management of the company cannot be entertained by the Authority as this issue is not tenable under the Real Estate (Regulation and Development) Act, 2016. Section 69 of the Act specifically provides that for the offences by the companies, the penal provisions apply for every person who, at the time, the offence was committed was in charge of, or was responsible to the company for the conduct of, the business of the company.

RERA/CC/654/2019 - Project: Kamal Heritage - After the new Directors took over the company it is their responsibility to take care of all the liabilities of the company as well as its assets. Section 69 of the Act specifically provides that the obligation of fulfilling the commitments made at the time of booking does not cease even after the resignation of the Directors and Officers of the Company.

RERA/CC/757/2019- Project: AARON Central City – If a company commits an offence under the Act, individuals responsible for the company's affairs at the time of the offence are deemed guilty and liable for punishment.

cc/1295/2021 - Project: Sanchar Nagar Project - Set aside the interest/ penalty levied upon the allottees of this complaint i.e. complainant by the demand letters issued to the respective allottees of this complaint and directs to issue possession letter by demanding the remaining amount due as per the Agreement for Sale and after receipt of the remaining amount, provide physical possession to the complainant and accordingly, execute the registered sale deed.

Share distribution of landowner

PROJECT: - SYAMA GARDEN

Case No. CC/1607/2020; landmark; the dispute pertains to the share of flats belonging to the complainant and the respondent company and the share distribution agreement which has to be adjudicated upon by the competent Court. The allegation of forcible occupancy of flats by the complainant may be taken by the respondent company before a court of competent civil jurisdiction and /or pursue the criminal matter. The land owner, as an allottee under the Bihar RERA Regulations, 2021 and the promoter are both required to fulfil their obligations under the Real Estate (Regulation & Development) Act, 2016 so that project can be completed on time.

Classicon Builders Pvt. Ltd

Case No. RERA/CC/1734/2020; landmark; Dispute of a civil nature is beyond the power vested with the Authority under the Real Estate (Regulation and Development) Act, 2016. The grievances of the complainant with respect to protection of 1/9th share would have to be adjudicated by a court of competent civil jurisdiction.

Project:- "Sanchar Nagar"

Case No. RERA/ CC/729/2021; landmark; Promoter is liable to hand over the share of the landowner as per development agreement.

Project: Ram Ishwar Tower

Case No. CC/1736/2020; landmark; The object of the Real Estate (Regulation & Development) Act, 2016 is to promote the growth of real estate sector and protect the interest of the allottees. The Authority is not vested with the power to adjudicate upon the share distribution agreement and the legality of authorization of the two partners with respect to carrying out the affairs of the partnership firm as the same vests with the court of competent jurisdiction.